



Notification Waiver Determination

River Capital – YOMG

Acquisition	River Capital Pty Ltd (River Capital) applied for a notification waiver in respect of its proposed acquisition, through a special purpose vehicle (RC Bite Bid Co Pty Ltd), of 100% of the issued shares in YOMG OpCo (which will own the trading business operating under the “YOMG” brand), the Leaseholder Companies (which hold the leases for each YOMG location), and YOMG IP Co (which holds the YOMG Group's intellectual property), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	22 June 2026

Parties to the Acquisition	The acquirer, River Capital, is an Australian-incorporated private investment firm headquartered in Melbourne, Australia. River Capital manages a number of funds with varying strategies and investments in various portfolio companies. The Cheesecake Shop, a River Capital portfolio company, is a retailer of cakes and desserts. It sells whole cakes and slices baked fresh on-site for take-home consumption, ordered in-store or online, as well as “dessert cups”. The Cheesecake Shop has approximately 255 stores across Australia and New Zealand. The Yo My Company Pty Ltd and its associated entities operate food and beverage outlets in Australia under the “YOMG” brand. YOMG is a quick-service restaurant business supplying burgers, fries, wings, frozen yoghurt and related food and beverage products. YOMG currently operates 15 stores across Victoria and Queensland.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. the parties’ combined share in the retail supply of dessert products in Victoria, Queensland and Australia is estimated to be low and the increase in share arising from the Acquisition would be small

	b. there are alternative retail suppliers of dessert products near YOMG stores in Victoria and Queensland. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**